

Calendar Line 10

Case Name: *Advoque Safeguard, LLC et al. v. Sanctuary Systems, LLC et al*

Case No.: 21CV392455

Defendant Robert Sigler's request for joinder and motion for judgment on the pleadings.

Background Facts

Plaintiffs Advoque Safeguard ("ASG") and Ciasom LLC ("Ciasom"; collectively, "Plaintiffs") manufactured N95 respirators during the COVID-19 pandemic and sued various entities and individuals that were involved in supplying Plaintiffs with mask filtration materials. These entities and individuals include, among others, defendant Robert Sigler.

The first amended complaint ("FAC") alleges the following causes of action against Robert Sigler: (1) negligence; (2) intentional misrepresentation; (3) concealment; (4) false promise; (5) negligent misrepresentation; (6) intentional interference with contractual relations; (7) intentional interference with prospective economic relations; (8) negligent interference with prospective economic relations; (9) conspiracy; and (10) unfair business practices.

On April 14, 2026, the court granted Robert Sigler's motion for summary adjudication of the following causes of action: (1) concealment; (2) false promise; (3) negligent misrepresentation; and (4) unfair business practices.

On August 5, 2026, Robert Sigler filed a combined notice of joinder and motion for judgment on the pleadings.⁷ On August 10, 2026, the court granted Robert Sigler's unopposed *ex parte* application to advance the hearing from January 8, 2027 to August 14, 2026. Plaintiffs filed a timely opposition, and Robert Sigler filed a late reply. The court will exercise its discretion in considering the late-filed paper. (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.)

Motion for Judgment on the Pleadings**Legal Standard**

A motion for judgment on the pleadings is proper when the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., § 438, subd. (c)(1)(B)(2).) "The grounds for motion provided in this section shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 438, subd. (d).) The motion is the functional equivalent of a general demurrer made after the time to demur has expired and more than 30 days before trial.

¹ Robert Sigler originally attempted to file the combined motion on July 22, 2026. The motion was denied by the clerk's office for having an incorrect hearing date.

(See Code Civ. Proc., § 438; see also *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999; *Shea Homes Limited Partnership v. County of Alameda* (2003) 110 Cal.App.4th 1246, 1254 (*Shea*).) “The court accepts as true all material factual allegations, giving them a liberal construction, but does not consider conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts.” (*Shea, supra*, 110 Cal.App.4th at p. 1254.)

Request for Joinder

A party can be permitted to join in another party’s motion, such as a motion for judgment on the pleadings, by filing a joinder and stating that the joining party adopts the requests and the points and authorities contained in the joined motion. (See *Barak v. The Quisenberry Law Firm* (2006) 135 Cal.App.4th 654, 660-661). Here, the joinder impermissibly attempts to raise additional grounds for a motion for judgment on the pleadings. A request for joinder cannot be used to expand or amend a previously filed motion; it may only adopt the requests made in the original motion.

In any event, Robert Sigler cannot adopt the arguments made by defendants Benham Pourdeyhimi and Leaders in Innovation and Nonwovens Commercialization (collectively, “LINC Defendants”) in their June 29, 2026 motion, or the arguments made by defendants Sanctuary Systems, LLC, Bryan Sigler, and 305 Consulting (collectively, “Sanctuary Defendants”) in their August 4, 2026 motion. Both motions argue that because the fraud claims have been dismissed against them, the causes of action that are predicated on the fraud claims must also be dismissed. Plaintiffs’ intentional misrepresentation cause of action remains viable against Robert Sigler.

Robert Sigler’s request for joinder is DENIED.

Discussion

Robert Sigler moves for judgment on the pleadings on Plaintiff’s intentional interference with contractual relations, intentional interference with prospective economic relations, negligent interference with prospective economic relations, and conspiracy causes of action on the ground that each fails to state facts sufficient to state a cause of action.

Intentional Interference with Contractual Relations

To state a cause of action for intentional interference with contract, a plaintiff must allege “ ‘(1) a valid contract between plaintiff and a third party; (2) defendant’s knowledge of this contract; (3) defendant’s intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.’ [Citations.]” (*Winchester Mystery House, LLC v. Global Asylum, Inc.* (2012) 210 Cal.App.4th 579, 596.)

The FAC alleges, “The Defendants [*sic*] engaged in fraud, misrepresentation and other conduct, which ultimately [*sic*] prevented performance and/or made performance of the contracts more expensive or difficult.” (FAC, ¶ 143.) The FAC further alleges that Plaintiffs breached contracts with their customers for the sale of N95 masks because Robert Sigler misrepresented Sanctuary’s capacity to produce N95-certifiable masks. (*Id.* at ¶¶ 23, 30.) As noted above, Plaintiffs’ intentional misrepresentation claim still remains viable. Accordingly,

these allegations are sufficient to survive a motion for judgment on the pleadings. (*Shea, supra*, 110 Cal.App.4th at p. 1254 [requiring liberal construction of the pleadings].)

The court DENIES Robert Sigler’s motion for judgment on the pleadings as to the intentional interference with contractual relations.

Interference with Prospective Economic Relations

To plead a claim for intentional or negligent interference with prospective economic relations, a plaintiff must allege that the defendant engaged in an independently wrongful act. (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1158 (*Korea Supply*); *Ixchel Pharma, LLC v. Biogen, Inc.* (2020) 9 Cal.5th 1130, 1142.) Thus, “a plaintiff seeking to recover for an alleged interference with prospective contractual or economic relations must plead and prove as part of its case-in-chief that the defendant not only knowingly interfered with the plaintiff’s expectancy, but engaged in conduct that was wrongful by some legal measure other than the fact of interference itself.” (*Della Penna v. Toyota Motor Sales, U.S.A.* (1995) 11 Cal.4th 376, 393.)

The FAC alleges, “Defendants engaged in wrongful conduct through their breaches, negligence, representation, fraud, or violation of statute, which ultimately [*sic*] interfered with ASG and CIASOM’s prospective economic advantage.” (FAC, ¶ 152.)

Robert Sigler contends that the FAC does not allege an independently wrongful act attributable to him. An act is independently wrongful if it is illegal—*e.g.*, proscribed by common law. (*Korea Supply, supra*, 29 Cal.4th at p. 1159.) Here, intentional misrepresentation and negligence causes of action remain viable against Robert Sigler. Thus, the motion for judgment on the pleadings cannot be granted on this basis. And while Robert Sigler argues that the FAC “lumps all eleven defendants together”, he cites no authority requiring that interference with prospective economic relation claims be pled with particularity.

Robert Sigler also contends that his alleged misrepresentations did not “induce a breach or disruption” of Plaintiff’s contract with Sanctuary. This argument ignores the allegation, which the court takes as true for this motion, that Plaintiff entered contracts with numerous third parties because of Robert’s purported misrepresentations. (FAC, ¶¶ 22, 30, 141; see *Shea, supra*, 110 Cal.App.4th at p. 1254.)

The court DENIES Robert Sigler’s motion for judgment on the pleadings as to the intentional and negligent interference with prospective economic relations claims.

Conspiracy

“To allege a conspiracy, a plaintiff must plead ‘(1) formation and operation of the conspiracy and (2) damage resulting to plaintiff (3) from a wrongful act done in furtherance of the common design.’ [Citation.]” (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1173 (*Daniels*), overruled on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919.) Conclusory allegations of conspiracy will not suffice. (*Daniels, supra*, 246 Cal.App.4th at p. 1173 [finding conspiracy allegations conclusory because no factual allegations about the nature of the agreement].)

The FAC alleges, “On information and belief, each of the Defendants agreed to conspire with one another to engage in the acts alleged herein including, but not limited to, fraud and conversion.” (FAC, ¶ 156.) This allegation is insufficient to survive a motion for judgment on the pleadings. While a plaintiff may allege on information and belief any matter that is not within his or her personal knowledge, the plaintiff must allege information that supports the belief that the allegations are true. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) The court, however, is unable to infer the basis for the allegations made on information and belief from the other allegations made in the FAC or general context. (See *J.W. v. Watchtower Bible and Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1166.) The FAC fails to allege how each of the defendants the claim is brought against formed a conspiracy, committed wrongful acts in furtherance of the conspiracy, or how the conspiracy (rather than the individual acts) damaged Plaintiffs.

Furthermore, given the dispositions of the LINC Defendants and Sanctuary Defendants’ respective motions for judgment on the pleadings, in addition to American Melt Blown & Filtration, Inc., there are no other defendants that Robert Sigler could have conspired with to engage in fraud, conversion, or any other of Plaintiffs’ claims. (See *Daniels, supra*, 246 Cal.App.4th at p. 1173.)

The court GRANTS Robert Sigler’s motion for judgment on the pleadings as to the conspiracy cause of action.

Disposition

The court DENIES Robert Sigler’s motion for judgment on the pleadings as to the fourteenth, fifteenth, and sixteenth causes of action on the ground of the failure to state sufficient facts.

The court GRANTS Robert Sigler’s motion for judgment on the pleadings as to the seventeenth cause of action without leave to amend. (See *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 [permitting leave to amend “only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case.”]; see also *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [plaintiff has the burden of showing how the complaint may be amended, and how that amendment will change the legal effect of the pleading].)

The Court will prepare the Order.